

		does not specify any of the means by which he confirmed this information. (MC-052, ¶ 3). Paragraph 3b of form MC-052 (declaration) requires the attorney to check off one of the following boxes if the attorney has confirmed that the address is current within the last 30 days: by mail, return receipt requested; by telephone; by conversation; or by other means (and to specify). Counsel did not check off any of these. Accordingly, the declaration is incomplete. Furthermore, the proof of service to the client contains errors. The proof of service to the client states that service was made upon “Plaintiff [not Defendant] Brenda Ortega.” In addition to incorrectly listing the party as a Plaintiff, Counsel lists the client as “Brenda Ortega.” While it may be assumed that Brenda Ortega owns and/or receives service on behalf of Ortega’s Moving & Delivery Service, Inc., the proof of service must depict service to the client. Cal. R. Ct., rule 3.1362, subd. (d), provides: “The notice of motion and motion, the declaration, and the proposed order must be served on the <u>client</u> and on all other parties who have appeared in the case. The notice may be by personal service, electronic service, or mail.” (Emphasis added). (See also Code Civ. Proc. § 1013a [proof of service by mail must include name and address of person served]). Here, the client is Ortega’s Moving & Delivery Service, Inc. Because Counsel failed to complete Paragraph 3 of his declaration on form MC-052, and submitted a proof of service with errors, the court DENIES the motion, without prejudice, so that Counsel may correct these errors. Counsel shall give notice to all parties, including the client, of this ruling
2	Benitez vs. Nissan North America, Inc.	Andrew C. Jung moves to be relieved as counsel of record for Plaintiffs Maria and Victor Benitez. The motion is GRANTED. The order relieving counsel will be effective upon the filing of a proof of service of the executed order upon all parties. Moving counsel shall give notice of this ruling.
1:30 p.m.		
1	Chan vs. General Motors LLC	1. Motion to Compel Further Response to Form Interrogatories Defendant General Motors, LLC is ordered to provide further verified responses, without objections, to Plaintiff’s Form Interrogatories, Set One, Nos. 12.1, 15.1 and 17.1 (as to RFAs Nos. 4, 8, 9, 10, 11, 14, 15 and 16), within 15 days’ notice of this order. (Code Civ. Proc., § 2030.300.) Additionally, Defendant General Motors, LLC and Counsel Erskine Law Group APC, are ordered to jointly pay sanctions to Plaintiff, in the amount of \$1,640.50. (Code Civ. Proc., § 2030.300, subd. (d).)